

9.	30-2022-01266130 DFS Services, LLC vs. Paragon Relocation Resources, Inc	1. Motion for Entry of Judgment Plaintiff DFS Services, LLC (“Discover”), will and hereby does move for the entry of judgment on its claim for conversion against defendants Paragon Global Resources, Inc. (“Paragon Global”), Joseph Morabito, and Jim Davis. <i>Code Civ. Proc., § 578:</i> Judgment may be given for or against one or more of several plaintiffs, and for or against one or more of several defendants; and it may, when the justice of the case requires it, determine the ultimate rights of the parties on each side, as between themselves. <i>Code Civ. Proc., § 579:</i> In an action against several defendants, the Court may, in its discretion, render judgment against one or more of them, leaving the action to proceed against the others, whenever a several judgment is proper. Here, the Court granted Plaintiff’s Summary Adjudication in favor of Plaintiff on its Conversion cause of action against these Defendants. In that order, the Court also denied Discover’s motion for summary adjudication on its intentional interference with prospective economic advantage claim against Mr. Morabito. On January 16, 2026, Discover requested dismissal of its claim for intentional interference for with prospective economic advantage. (Belcher Decl. Ex. D.) As a result of Paragon Relocation’s bankruptcy petition, the Court’s order on Discover’s motion for summary adjudication, and Discover’s request for dismissal, the sole remaining issue to be tried is Paragon Relocation’s breach of contract claim against Discover. (Belcher Decl. ¶ 10.) However, litigation is ongoing and a cross-action for breach of contract remains before the Court and arises from the same transaction- the handling, application, and disposition of the same fund that form the basis of Plaintiffs conversion claim. (Belcher Decl. , 10, Ex. B [Cross-Complaint, 1-5, 22-28].) Responding Party (“RP”) argues that the factual overlap is substantial, and the remaining claims may directly bear on damages, offsets, and the ultimate equities between the parties. (Belcher Decl. Ex. B [Cross Complaint ¶4-5 17- 20, alleging \$262,217 in unpaid relocation expenses arising from same contractual relationship]; Belcher Decl. Ex. A [Complaint¶¶ 44-47, conversion claim based on same funds].) Finally, RP argues where unresolved claims remain intertwined with adjudicated claims, entry of judgment is not 'proper' within the meaning of section 579. (Code Civ. Proc., § 579.) Given that there are still claims pending between Cross-Complainant Paragon and Cross-Defendant Discover, the motion is DENIED. RP to give notice.
10.	30-2023-01318153 Feng vs. Feng	1. Motion-Other (by Interested Third Party William C. Kersten for an Order Releasing the \$139,375 Held in Trust to Defendant/Cross-Complainant Paul Ye-Chou Feng) William C. Kersten moves for an order allowing him to release \$139,375 held in the William C. Kersten trust account to defendant/cross-complainant Paul Ye-Chou Feng on the ground that he is no longer Paul’s attorney of record and it is not appropriate for him to be holding funds for Paul in this matter.

However, no valid substitution of attorney has been filed reflecting that Mr. Kersten is no longer Paul's counsel of record. While it appears that a substitution of attorney was submitted for filing on 6/4/26, it was rejected and no other substitution of attorney has been filed since. Thus, the argument that Mr. Kersten cannot appropriately continue to hold the client's funds in a trust account lacks merit.

Mr. Kersten also argues that the funds should be ordered released because the Court found that plaintiff/cross-defendant Rong Feng had breached the parties' Settlement Agreement by failing to use his best efforts to obtain Mrs. Feng's funds held in Taiwan in a timely manner.

The parties' Settlement Agreement provides that Rong shall receive 100% of Mrs. Feng's financial assets held at Cathey United Bank in Taiwan and Paul shall receive none. Rong shall pay \$278,750 in cash to the William C. Kersten Trust Account and 50% shall be immediately released to Paul and the remaining \$139,375 shall remain in the William C. Kersten Trust Account until Rong receives Mrs. Feng's Taiwan bank assets.

In a prior Motion to Enforce Settlement, Paul asked the Court to order the release of the \$139,375 held in trust. However, the Court declined to order immediate release of the funds as contrary to the parties' agreement. (ROA 316.) Mr. Kersten offers no additional legal authority in support of his argument that the funds should be released immediately. As the Court previously noted, both parties bear some responsibility for the delay in Rong's receipt of the Taiwan funds—Rong by failing to pay his portion of the retainer for Taiwanese counsel as agreed and Paul by failing to timely obtain his Taiwanese passport. The Court finds ordering the immediate release of the funds contrary to the parties' agreement when both parties are responsible for the delay in the condition precedent of Rong's receipt of the Taiwan funds being satisfied is not warranted under these circumstances.

Based on the above, unless there is sufficient proof provided that the condition precedent of Rong's receipt of the Taiwan funds has been satisfied, the Motion is **DENIED**.

Clerk to give notice.